

Superior Court of Washington, County of King_____

In re:

Petitioner/s (*person/s who started this case*):

Melvina Catherine Manning

And Respondent/s (*other party/parties*):

Zackariah Jeremiah Bennett

No. 22-2-09380-3_____

Declaration of
(*name*): Zackariah Jeremiah Bennett
(DCLR)

Declaration of (*name*): Zackariah Jeremiah Bennett_____

1. I am (*age*): 41____ years old and I am the (*check one*): ☐ Petitioner ☒ Respondent
☐ Other (*relationship to the people in this case*): _____

2. I declare: *Respondent, Zackariah Jeremiah Bennett, does move to dismiss the Complaint for: Lack of Subject Matter Jurisdiction; Failure to State a Claim upon which relief can be granted; Lack of Standing – based on the grounds set forth below.*

Lack of Subject Matter Jurisdiction; In order for an ex parte Domestic Violence Protection Order to be filed it must allege "...irreparable injury could result from domestic violence if an order is not issued immediately without prior notice to the respondent...". "...Irreparable injury under this section includes but is not limited to situations in which the respondent has recently threatened petitioner with bodily injury or has engaged in acts of domestic violence against the petitioner." Domestic Violence as defined in Washington Revised Code Title 26. Domestic Relations § 26.50.010 (3) "Domestic violence" means: (a) Physical harm, bodily injury, assault,

or the infliction of fear of imminent physical harm, bodily injury or assault, sexual assault, or stalking as defined in [RCW 9A.46.110](#) of one intimate partner by another intimate partner; or (b) physical harm, bodily injury, assault, or the infliction of fear of imminent physical harm, bodily injury or assault, sexual assault, or stalking as defined in [RCW 9A.46.110](#) of one family or household member by another family or household member.

As the petition lacks allegation of any actions by the respondent that meet either definition (irreparable injury & domestic violence), nor any statements of fact that would give reasonable cause to believe that that the respondent has ever committed domestic violence against the other party let alone that irreparable injury could result from domestic violence. Lacking a credible allegation that meets the defined standard required for issuance of the motion, the rest is moot for there is no subject matter left to have jurisdiction over.

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___ **Failure** to State a Claim upon which relief can be granted: There was no allegation made in the petition that meet the definition of Domestic Violence (when viewed as if everything the petitioner filed was the truth.) , as no DV occurred

Lack of standing: he [petitioner] bears the burden of meeting the "irreducible constitutional minimum" of Article III standing by establishing three elements:

-First, the [petitioner] must have suffered an injury in fact — an invasion of a legally protected interest which is (a) concrete and particularized and (b) actual or imminent, not conjectural or hypothetical.

-Second, there must be a causal connection between the injury and the conduct complained of the injury has to be fairly traceable to the challenged action of the defendant, and not the result of the independent action of some third party not before the court.

-Third, it must be likely, as opposed to merely speculative, that the injury will be redressed by a favorable decision. Lujan v. Defenders of Wildlife, 504 U.S. 555, 560-61 (1992) (internal quotations, alterations, and citations omitted).

We have recognized that of the three required elements of constitutional standing, "the injury-in-fact element is often determinative." Toll Bros., Inc. v. Twp. of Readington, 555 F.3d 131, 138 (3d Cir. 2009). To satisfy this requirement, the alleged injury must be "particularized," in that it "must affect the [petitioner] in a personal and individual way." Lujan, 504 U.S. at 560 n.1. "[T]he 'injury in fact' test requires more than an injury to a cognizable interest. It requires that the party seeking review be himself among the injured." Id. at 563 (quoting Sierra Club v. Morton, 405 U.S. 727, 734-35 (1972)). The injury must also be "an invasion of a legally protected interest." Id. at 560. Furthermore, "the standing inquiry requires careful judicial examination of a complaint's allegations to ascertain whether the particular [petitioner] is entitled to an relief for the particular claims asserted." Allen, 468 U.S. at 752. Therefore I move to dismiss the action as well as all orders put in place from the action. The action was initiated in bad faith to hamper respondents efforts in litigating the petitioner on matters concerning my Parental Rights & a Communication Agreement concerning my son [Timothy Edward Bennett II] and I from 2012; the plaintiff either made it in bad faith, or simply chose to ignore the terms of, since the day I signed it.

I declare under penalty of perjury under the laws of the state of Washington that the facts I have provided on this form (and any attachments) are true. ☐ I have attached (number): 0__ pages.

Signed at (city and state): Goldendale, WA

Date: 07/11/2022_____

► 
Sign here

Zackariah Jeremiah Bennett
Print name

